

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- x
KAHEEM BRYANT,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER BLAISE
CHRISTOFORATOS, Shield No. 22736, and POLICE
OFFICERS JOHN DOES #1-2 (names and number of whom
are unknown at present), and other unidentified members of
the New York City Police Department,Defendants.
----- X**SUMMONS**

Index No.:

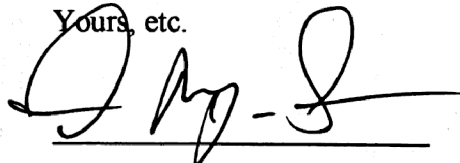
The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**JURY TRIAL DEMANDED****To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York

May 29, 2020

Yours, etc.

Elliot D. Shields
Roth & Roth, LLP
Counsel for Plaintiff
192 Lexington Avenue

Suite 802
New York, New York 10016
(212) 425 1020

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
BLAISE CHRISTOFORATOS, Shield No. 22736, 67th Precinct, 2820 Snyder Ave,
Brooklyn, NY 1122

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

KAHEEM BRYANT,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, POLICE OFFICER BLAISE
CHRISTOFORATOS, Shield No. 22736, and POLICE
OFFICERS JOHN DOES #1-2 (names and number of
whom are unknown at present), and other unidentified
members of the New York City Police Department,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff, KAHEEM BRYANT, by his attorneys, ROTH & ROTH LLP, as and for his
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and the Constitution and common law of the State of New York. On June 10, 2019, at approximately 10:30 a.m., plaintiff, Kaheem Bryant, while lawfully driving on Bedford Avenue near the vicinity of Avenue D, Brooklyn, New York, was subject to an unlawful stop, search and arrest. Plaintiff was driving a rental car and produced all proper paperwork, but the officers accused him of stealing the car, arrested him, and transported him to the 67th Precinct. Thereafter, he was transferred to Kings County Central Booking, where he was released out a back door when the District Attorney's Office declined to prosecute him. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, seized, unlawfully searched, falsely arrested, and falsely imprisoned, the plaintiff in violation of the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, and the Constitution and common law of the State of New York.

PARTIES

2. Plaintiff KAHEEM BRYANT is a resident of Brooklyn, New York.

3. Defendant CITY OF NEW YORK ("CITY") is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant CITY assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

4. Police Officer ("P.O.") BLAISE CHRISTOFORATOS ("CHRISTOFORATOS") (Shield # 22736) and JOHN DOES # 1-2 (collectively "defendant NYPD officers") are and were at all times relevant herein, officers, employees and agents of the NYPD. The defendant police officers are being sued in their individual and official capacities.

5. The defendant NYPD officers are being sued in their individual and official capacities.

6. At all times relevant herein, the individual NYPD defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the Defendant CITY OF NEW YORK, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

7. The individual NYPD defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.

8. At all relevant times, the individual defendants were engaged in joint ventures, assisting each other in performing the various actions described herein and lending their physical presence in support and the authority of their offices to one another.

9. Plaintiff, in furtherance of his State causes of action, filed a Notice of Claim against the CITY OF NEW YORK. The City held a 50-h hearing on January 22, 2020.

10. More than thirty (30) days have elapsed since said Notice of Claim was filed and the CITY OF NEW YORK has failed to pay or adjust the claim.

11. This action is being brought within a year and 90 days of the event giving rise to Plaintiff's State causes of action.

STATEMENT OF FACTS

12. On June 10, 2019, at approximately 10:30 a.m., Plaintiff, Kaheem Bryant, was unlawfully pulled over by Defendants CHRISTOFORATOS and John Doe # 1 in the vicinity of Bedford Avenue and Avenue D, Brooklyn, New York.

13. At the time of the incident, Mr. Bryant was driving a rental car because his car had been totaled in an accident, and the other driver's insurance provided him with a rental car.

14. After being pulled over, Mr. Bryant provided Defendants with all proper paperwork they requested, including his license and the car's registration.

15. Defendants then ran his license and registration.

16. After being pulled over, Mr. Bryant began to record the interaction on his cell phone.

17. After running his license and registration, Defendants ordered Mr. Bryant to exit the vehicle.

18. Defendants then searched Mr. Bryant's person.

19. While they searched his person, Defendants commented on the fact that Mr. Bryant had recorded them with his cell phone when they pulled him over.

20. Defendants did not locate any drugs, weapons or illegal paraphernalia pursuant to the search.

21. At no time did Mr. Bryant commit any crime or violation.

22. Nevertheless, Defendants placed Mr. Bryant in handcuffs.

23. Mr. Bryant was then placed in the back of the police car.

24. After Mr. Bryant was placed in the back of the police car, Defendants informed him he was under arrest for stealing the car he was driving.

25. When Mr. Bryant objected that he was driving a rental car, Defendants stated "they steal these cars all the time."

26. Mr. Bryant was then transported to the 67th Precinct against his will.

27. At the precinct, Mr. Bryant was fingerprinted, photographed and then placed in a holding cell.

28. Mr. Bryant was detained against his will at the 67th Precinct for approximately seven hours.

29. After being detained at the 67th precinct for approximately seven hours, Mr. Bryant was transported to Kings County Central Booking.

30. Mr. Bryant was searched and then placed in a holding cell at Kings County Central Booking.

31. Mr. Bryant was detained in the holding cell at Kings County Central Booking until approximately 1:30 a.m. on June 11, 2019.

32. At approximately 1:30 a.m., an officer removed Mr. Bryant from the cell and released him out the back door.

33. Mr. Bryant was never arraigned and never saw a judge before he was released.

34. Mr. Bryant later learned that the Kings County District Attorney's office had declined to prosecute him for any crime.

35. Mr. Bryant was detained for a total of approximately 15 hours in police custody.

36. Some of the Defendant NYPD Officers observed the violation of Mr. Bryant's rights under the Constitutions of the United States and the State of New York, and state common law, but did nothing to prevent the unlawful seizure, search, false arrest, and false of plaintiff.

37. The unlawful stop, unlawful search, false arrest, and false imprisonment, of plaintiff by the Defendant NYPD Officers caused plaintiff to sustain physical, psychological and emotional trauma, and economic damages.

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

38. Plaintiffs re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

39. All of the aforementioned acts of the Defendant CITY, and the Defendant NYPD Officers and their agents, servants and employees ("Defendants"), were carried out under the color of state law.

40. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to, the right:

- a. Not to be deprived of liberty without due process of law;

- b. To be free from seizure and arrest not based upon probable cause;
- c. To freedom from being subjected to false criminal charges by the police;
- d. To freedom from being unlawfully searched by the police;
- e. To freedom of speech and expression; and
- f. To freedom to record the police in a public place;

41. All of the aforementioned acts deprived Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

42. The acts complained of were carried out by the aforementioned Defendant NYPD Officers in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

43. The acts complained of were carried out by the aforementioned Defendant NYPD Officers in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendant CITY and the NYPD, all under the supervision of ranking officers of said department.

44. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

45. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

46. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

47. One or more of the Defendant NYPD Officers, including but not limited to CHRISTOFORATOS and JOHN DOES # 1-2 handcuffed and arrested plaintiff.

48. This arrest was made in the absence of a warrant for the arrest.

49. This arrest was made in the absence of probable cause for this arrest.

50. The Defendant NYPD Officers arrested plaintiff without having exigent circumstances for doing so.

51. There was no other authority for the arrest of plaintiff.

52. The plaintiff was conscious of this arrest.

53. The plaintiff did not consent to this arrest.

54. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

55. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THIRD CLAIM FOR RELIEF

FALSE ARREST UNDER NEW YORK STATE LAW

56. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

57. As a result of the aforesaid conduct by the Defendant CITY and the Defendant NYPD Officers, Plaintiff was unlawfully detained and confined.

58. The Defendant NYPD Officers—in performance of their duties with powers and authorities designated upon them by the Defendant CITY—intentionally confined Plaintiff.

59. Plaintiff was at all times consciously aware of his confinement by the Defendant NYPD Officers.

60. At no point throughout Plaintiff's unlawful detention and confinement by the Defendant NYPD Officers did Plaintiff consent to said confinement.

61. At no point throughout Plaintiff's unlawful detention and confinement by the Defendant NYPD Officers were the actions of the Defendant NYPD Officers otherwise privileged.

62. Defendant City is also liable to Plaintiff on the basis of *respondeat superior* as a result of the unlawful actions of the Defendant NYPD Officers as described herein.

63. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

64. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FOURTH CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

65. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

66. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

67. Defendants lacked probable cause to search plaintiff.

68. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution and the State of New York.

69. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer economic injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damages to his reputation and standing within his community.

70. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

FIFTH CLAIM FOR RELIEF

FAILURE TO INTERVENE under 42 U.S.C. § 1983

71. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

72. The Defendant NYPD Officers all had an affirmative duty to intervene on Plaintiff's behalf to prevent the violation of his constitutional rights by the other Defendant NYPD Officers.

73. The defendant police officers failed to intervene on Plaintiff's behalf despite having had realistic opportunities to do so.

74. The Defendant NYPD Officers failed to intervene on Plaintiff's behalf despite having substantially contributed to the circumstances within which plaintiff's rights were violated by their affirmative conduct.

75. CHRISTOFORATOS failed to intervene on Plaintiff's behalf to prevent and/or halt the violation of his rights by the other officers.

76. JOHN DOES # 1-2 Failed to intervene on Plaintiff's behalf to prevent and/or halt the violation of his rights by CHRISTOFORATOS.

77. As a result of the aforementioned conduct of the Defendant NYPD Officers, Plaintiff's constitutional rights were violated.

78. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

79. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SIXTH CLAIM FOR RELIEF
RETALIATION FOR FIRST AMENDMENT PROTECTED EXPRESSION UNDER
42 U.S.C. § 1983

80. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

81. Plaintiff recorded his interaction with the police at the time of the incident in question.

82. The Defendant NYPD officers, including but not limited to CHRISTOFORATOS and JOHN DOES # 1-2 arrested Plaintiff in order to retaliate against him for documenting the illegal stop with his cell phone.

83. The Defendant NYPD officers, including but not limited to CHRISTOFORATOS and JOHN DOES # 1-2 arrested Plaintiff in order to retaliate against him and to chill and deter him from further First Amendment protected activity.

84. Plaintiff was not engaged in any illegal activity of any kind or sort when the Defendants stopped and arrested him.

85. The Defendants arrested Plaintiff in order to retaliate against him for lawfully exercising his First Amendment protected right to record the police performing their duties in a public place.

86. The actions of the defendant NYPD officers heretofore described were designed to and did cause severe psychological and emotional distress in direct retaliation for Plaintiff's

exercise of his civil and constitutional rights of free speech, free expression and to record the police performing their public duties in a public place as guaranteed by First and Fourteenth Amendments to the United States Constitution.

87. As a result of the forgoing, Plaintiff is entitled to compensatory damages and punitive damages against the Defendants in amounts to be determined at trial.

88. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, physical injuries, violation of her civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to his reputation and standing within his community.

89. As a result of Defendants' impermissible conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

**SEVENTH CLAIM FOR RELIEF
NEGLIGENCE UNDER NEW YORK STATE LAW
(AGAINST THE CITY)**

90. Plaintiff re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

91. Defendant City was negligent in the hiring and retention of the Defendant NYPD Officers as follows:

- A. Upon information and belief, Defendant City failed to use reasonable care in the hiring and retention of the Defendant NYPD Officers who conducted and participated in the acts of subjecting Plaintiff to an unlawful stop, unlawful seizure, unlawful search, false arrest, false imprisonment, and violated his constitutional rights in the manners described herein.
- B. Defendant City knew, or should have known in the exercise of reasonable care, the propensities of the aforesaid Defendant NYPD Officers to engage in the wrongful conduct heretofore alleged in this complaint.

92. Defendant the City was negligent in the training and supervision of the Defendant NYPD Officers as follows:

- A. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding determining whether probable cause exists to believe a vehicle was stolen, and to prevent the Defendant NYPD Officers from engaging in the wrongful conduct heretofore alleged in this complaint.
- B. Defendant City knew or should have known that the requirements, guidelines, and terms of its training for the defendant police officers were insufficient and inadequate regarding citizen's First Amendment right to record police performing their official duties in a public place, and to prevent the defendant police officers from engaging in the wrongful conduct heretofore alleged in this complaint.

93. Defendant the City was negligent in failing to discipline and take corrective action against the Defendant NYPD Officers as follows:

- A. Defendant the City knew or should have known that Defendant CHRISTOFORATOS and JOHN DOES # 1-2 had repeatedly falsified official police paperwork regarding their account of the reasons for arresting and/or using force against individuals and arrestees, and had unlawfully arrested individuals in retaliation for them lawfully video recording their conduct, but failed to reprimand, suspend, retrain, or otherwise discipline CHRISTOFORATOS and JOHN DOES # 1-2.

94. Defendant City is also liable to Plaintiff on the basis of *respondeat superior* as a result of the unlawful actions of the Defendant NYPD Officers as described herein.

95. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed.

96. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

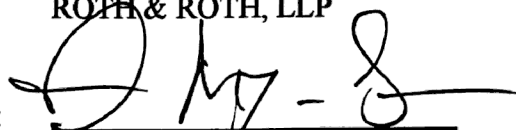
WHEREFORE, Plaintiff demands judgment against all the Defendants on each cause of action set forth above in an amount which exceeds the jurisdictional limitations of all lower courts that would otherwise have jurisdiction over this action, together with the interest, costs and disbursements of this action, and attorney's fees and costs pursuant to 42 U.S.C. § 1988.

**Dated: New York, New York
May 29, 2020**

Respectfully Submitted:

ROTH & ROTH, LLP

By:

A handwritten signature in black ink, appearing to read "ES - 8", is written over a horizontal line.

**Elliot D. Shields
Roth & Roth, LLP
Counsel for Plaintiff
192 Lexington Avenue
Suite 802
New York, New York 10016
(212) 425 1020**

**TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
BLAISE CHRISTOFORATOS, Shield No. 22736, 67th Precinct, 2820 Snyder
Ave, Brooklyn, NY 1122**

ATTORNEY'S VERIFICATION

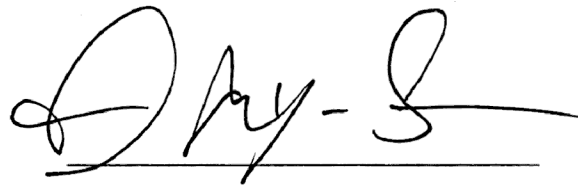
ELLIOT DOLBY SHIELDS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am associated with Roth & Roth LLP, attorneys for the plaintiff herein, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is being made by me is because the Plaintiff does not reside in the County where I maintain my office.

DATED: New York, New York

May 29, 2020

A handwritten signature in black ink, appearing to read "Dolby-S", written over a horizontal line.

ELLIOT DOLBY SHIELDS